

Eviction and the Reproduction of Urban Poverty

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Eviction and the Reproduction of Urban Poverty¹

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Combining statistical and ethnographic analyses, this article explores the prevalence and ramifications of eviction in the lives of the urban poor. A quantitative analysis of administrative and survey data finds that eviction is commonplace in inner-city black neighborhoods and that women from those neighborhoods are evicted at significantly higher rates than men. A qualitative analysis of ethnographic data based on fieldwork among evicted tenants and their landlords reveals multiple mechanisms propelling this discrepancy. In poor black neighborhoods, eviction is to women what incarceration is to men: a typical but severely consequential occurrence contributing to the reproduction of urban poverty.

Ever since the earliest writings of the Chicago school, sociologists have pondered the movement of people across the metropolis. Invasion and succession, residential mobility and migration, instability and neighbor-

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hood change—shifts and sortings forming “the tidelands of city life” (Zorbaugh 1929, p. 3)—these have been central to the study of urban society and its problems.

Social scientists have amassed considerable evidence that poor families exhibit high levels of residential mobility, moving, in most cases, from one disadvantaged neighborhood to another (South and Crowder 1998; Sampson and Sharkey 2008). Although we have sound theories that explain why people move out of the slum, parlaying higher earnings into residential advantage (e.g., Logan and Alba 1993; South and Crowder 1997),² we know little about why so many people move within it. Increased residential mobility is associated with a host of negative outcomes, including higher rates of adolescent violence (Sharkey and Sampson 2010), poor school performance (Pribesh and Downey 1999), health risks (Dong et al. 2005), psychological costs (Oishi 2010), and the loss of neighborhood ties (Sampson, Morenoff, and Earls 1999). If residential mobility brings about such outcomes, then determining why poor families move as often as they do is crucial to our understanding of the root causes of social disadvantage and to the development of effective policy initiatives.

While far from exhaustive, three explanations for high levels of residential mobility among the urban poor present themselves. The first has to do with neighborhood or housing dissatisfaction. As crime on a block is perceived to increase or as tenants grow weary of substandard conditions, they might seek out new places to live (Speare, Goldstein, and Frey 1975; Rossi 1980). Yet neighborhood dissatisfaction does little to explain why families move from low- to high-poverty neighborhoods or between high-poverty neighborhoods with similar levels of crime. Studies have shown, moreover, that African-Americans are less likely than other racial and ethnic groups to move because of neighborhood dissatisfaction (South and Deane 1993).

Gentrification and neighborhood revitalization may also explain high levels of residential mobility among the urban poor. At the dawning of the 21st century, analysts warned of a “resurgence of gentrification” (Smith 1996; Wyly and Hammel 1999), including that ostensibly driven by

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² When it comes to transforming economic capital into residential capital, the exchange rate is much steeper for African-Americans (Logan et al. 1996). That human capital attributes alone cannot explain racial segregation has led scholars to document how many blacks are prevented from escaping disadvantaged neighborhoods by structural impediments such as characteristics of the housing market and racial discrimination (Massey and Denton 1993; Sampson and Sharkey 2008).

middle- and upper-class African-Americans (Pattillo 2007; Hyra 2008). Even so, gentrification typically visits only a small number of poor neighborhoods and accounts for a small portion of moves among poor renters (Kasarda et al. 1997). And although sociologists long have observed that gentrification displaces poor residents (Marcuse 1986; Logan and Molotch 1987), a number of recent studies have arrived at the opposite conclusion, finding gentrification to be associated with lower rates of residential turnover among disadvantaged households (Vigdor 2002; Freeman 2005; though see Newman and Wyly 2006). Some scholars have speculated that “gentrification brings with it neighborhood improvements” that cause low-income renters to make “greater efforts to remain in their dwelling units, even if the proportion of their income devoted to rent rises” (Freeman and Braconi 2004, p. 51).

A third explanation has to do with slum clearance. Classic works of urban sociology and history—Jacobs’s *The Death and Life of Great American Cities* (1961), Gans’s *The Urban Villagers* (1962), Caro’s *The Power Broker* (1974)—have chronicled the massive and traumatic uprooting of poor communities dislodged midcentury under the banner of “urban renewal.” In recent years, municipalities increasingly have razed public housing units, casting their residents throughout the city (Goetz 2002; Bennett, Smith, and Wright 2006). Poor blacks have borne the brunt of this consequential transformation, as “local housing authorities have systematically chosen [to tear down] projects that, even by the standards of their own city, are disproportionately inhabited by Black families” (Goetz 2011, p. 1600). Yet, however impressive its scope and consequential its ramifications, the demolition of public housing throughout the United States accounts for a minute portion of residential moves among low-income renters (Stone 1976). And of course, the demolition of public housing cannot account for the high levels of residential mobility among the poor documented long before the arrival of the wrecking ball.

Even taken together, then, neighborhood dissatisfaction, gentrification, and slum clearance cannot fully explain the high levels of residential mobility among the urban poor. It would seem, then, that scholars have overlooked important mechanisms driving residential mobility within inner-city neighborhoods. This article identifies *eviction* as one such mechanism. Eviction is perhaps the most understudied process affecting the lives of the urban poor. Although social scientists have examined eviction rates in supplementary analyses (Mayer and Jencks 1989), legal scholars have researched how counsel affects eviction court outcomes (Monsma and Lempert 1992; Seron et al. 2001), and urban ethnographers have mentioned eviction cursorily (Stack 1974; Venkatesh 2000), we still know very little about it (Hartman and Robinson 2003). A mixed-methods endeavor that combines a quantitative analysis of eviction records and sur-

vey data with a qualitative analysis of ethnographic data gleaned from fieldwork among evicted families and their landlords, this study is among the first to empirically evaluate the relationship between eviction and urban poverty. To do so, it pursues four research questions. First, how prevalent is eviction? Second, where in the city do evictions occur? Third, are women disproportionately affected by eviction and, if so, why? Fourth, what are the consequences of eviction?

Drawing on an analysis of eviction records from Milwaukee, a city of roughly 600,000, this article finds eviction to be a frequent occurrence. Even before the housing crisis began in 2007, thousands were evicted from their homes each year. Between 2003 and 2007, landlords evicted roughly 16,000 adults and children from 6,000 units in an average year. To place these figures in perspective, consider that the number of families evicted in Milwaukee in an average year is equivalent to the number of families forced out of public housing in Chicago, a city with approximately five times the population, over the course of a decade.³ Almost half of the city's evictions took place in predominantly black inner-city neighborhoods, where one renter-occupied household in 14 was evicted annually. In black neighborhoods, women were more than twice as likely to be evicted as men. Findings from ethnographic fieldwork reveal how *structural constraints*, having to do with work, welfare, and housing costs, and *interactional patterns*, having to do with gendered reactions to receiving an eviction notice, place women from poor black communities at especially high risk of eviction.

If incarceration has become typical in the lives of men from impoverished black neighborhoods, eviction has become typical in the lives of women from these neighborhoods. Typical yet damaging, for the consequences of eviction are many and severe: eviction often increases material hardship, decreases residential security, and brings about prolonged periods of homelessness (Crane and Warnes 2000; Burt 2001); it can result in job loss, split up families, and drive people to depression and, in extreme cases, even to suicide (Serby et al. 2006; Desmond 2012); and it decreases one's chances of securing decent and affordable housing, of escaping disadvantaged neighborhoods, and of benefiting from affordable housing programs. In inner-city neighborhoods, it is women who disproportionately face eviction's fallout.

³ Between 1995 and 2005, 4,851 families were relocated (with vouchers) from public housing units in Chicago (Wilén and Nayak 2006, p. 219), the archetypical case of public housing transformation.

DATA AND METHODS

The multiple methods on which this article relies informed each other in important ways. Although I entered the field with a set of research questions to pursue, questions guided by current theories of urban poverty, these lines of inquiry flexed, waned, or amplified as the fieldwork progressed. Some research questions pursued here first presented themselves during my ethnography. They most likely would not have sprung to mind had I never set foot in the field. But it was only after conducting quantitative analyses of court records and survey data that I was able to understand fully the magnitude of eviction in the inner city and to document racial and gender disparities. The problem rendered clearer and more refined by aggregate comparisons, I returned to my field notes to identify the mechanisms behind the numbers, looking for repeated patterns while also paying mind to variation and diversity of experience. Working in tandem with one another, each method enriched the other. And each kept the other honest.

Eviction Records

I extracted legal records of court-ordered evictions that took place in Milwaukee County between January 1, 2003, and December 31, 2007. These records encompass all closed eviction cases and exclude open cases and cases dismissed because the court ruled in favor of the tenant or because the landlord and tenant reached an agreement. Milwaukee law permits landlords to evict tenants for breaching the rental agreement by falling behind in rent or by committing a number of other violations (e.g., property damage, drug distribution). Tenants renting on a month-to-month basis may be evicted even if they have not broken the rental agreement. The court records include all such evictions.

Each eviction case involved at least one landlord and at least one tenant. And each included the full names of tenants and landlords, the address for which the eviction was ordered, and the judgment date. Addresses were geo-coded using ArcGIS and an associated road network database, producing an exact latitude and longitude for each case as well as a corresponding census location. It was then possible to merge the eviction records from one year with population estimates of Milwaukee County block groups from that same year. GeoLytics, a company specializing in creating customized data sets of demographic information, calculated population estimates by drawing on the 2000 census, county- and state-level annual estimates, actuarial tables, and immigration records. Block groups were selected as the unit of analysis because they are the smallest geographic area for which income and poverty information is reported. Mil-

waukee County is divided into 880 block groups, the average one housing 747 adults. For the purpose of these analyses, a “neighborhood” was defined as a block group, and its racial composition was designated, say, “white” if non-Hispanic whites accounted for at least two-thirds of neighborhood residents. By these criteria, in 2007 there were 193 black, 477 white, 35 Hispanic, and 175 mixed neighborhoods in Milwaukee. Roughly 13.5% of eviction cases ($N = 4,661$) did not merge with population estimates (they included no addresses, owing to clerical error) and were dropped, along with all nonresidential evictions ($N = 253$). This resulted in a sample size of 29,960 eviction cases—involving 32,491 landlords and 36,252 tenants—with complete geographic information.

Because eviction records unfortunately did not include sex (or race) identifiers, two methods were employed to impute sex. First, a pair of research assistants assigned a sex to each person, based on first names.⁴ After additional court record and Internet searches, 3.7% of names not immediately recognizable as belonging exclusively to a man or a woman remained unknown. Unknown names were excluded from analyses that compared women and men. Supplementary analyses (one in which half the unknown names were designated male and half female; another in which all unknown names were designated male) revealed that excluding unknown names did not influence the results. Second, drawing on Social Security card applications for U.S. births, I compiled the 1,000 most popular names per decade from the 1940s, 1950s, 1960s, 1970s, and 1980s (years adults ages 18–67 in 2003–7 were born).⁵ Then, I merged together the 1,000 most popular names for all five decades (resulting in 3,090 distinct names) and generated a “likelihood female” statistic by dividing the total number of girls with a name by the total number of all people with that name. If a name was distinctively female, it received a score of 1 ($N = 1,564$); if a name was distinctively male, it received a score of 0 ($N = 1,304$). The remaining 222 names received scores between 0 and 1, with names more popular among boys (e.g., Randy, Bobby) receiving scores closer to 0 and names more popular among girls (e.g., Sharon, Erin) receiving scores closer to 1. The likelihood female statistic was affixed to all names represented in both the Social Security Administration and eviction records. (Of the 8,261 distinct first names among evicted tenants, 6,063 were not found among the top 1,000 names of the five decades. These 6,063 names accounted for 8,793 tenants.) Coders estimated that 60.6% of evicted tenants were women. The likelihood female statistic

⁴ To calculate interrater reliability, both coders assigned a sex to the same set of 1,000 randomly selected names. Reliability was calculated using Cohen’s κ (Cohen 1960). This test resulted in a κ of .85, signaling very strong agreement (Gwet 2001).

⁵ Felix Elwert conceived of, and generously helped to execute, this strategy.

based on Social Security records estimated that 60.7% were women. These virtually identical point estimates express a high degree of agreement between the two methods and bolster confidence in coders' assignments. More details about the process of imputing sex from names can be found in the appendix.

An annual household eviction rate was calculated by dividing the number of eviction cases in a year by the number of occupied rental units estimated for that year. Additionally, for each block group, I estimated the eviction rate for male and female renters by dividing the number of evictees of one sex by the number of adults of the same sex living in rental housing.⁶ With these statistics in hand, I could calculate risk ratios (by dividing the female eviction rate by the male rate) and risk differences (by subtracting the male rate from the female rate). All statistics were calculated for each block group for each year. The results were then pooled and annual averages calculated. Risk ratios and risk differences were calculated in three different samples. The first included all block groups with at least one female evictee and at least one male evictee. The second included only high-poverty block groups, where more than 40% of the population lived at or below 150% of the poverty line. The third included only "hypersegregated neighborhoods," where at least 85% of residents belonged to the same racial or ethnic group.

The primary strength of analyzing court records lies in the accuracy of the information. I learned during fieldwork that many tenants tend to have misguided conceptions of eviction. Indeed, some who clearly were evicted (their names appearing in the court records) did not realize as much. Just as epidemiologists have found ecological-level data on sensitive topics (e.g., alcohol consumption) to be much more precise than estimates gleaned from individual-level surveys (see Schwartz 1994), relying on court records resulted in a much more exact measure of the incidence and location of eviction than could be generated from survey research. But court record data also are limited. For one, they do not enable me to compare the characteristics of evicted and nonevicted households to de-

⁶ To generate estimates of male and female renter populations, I first constructed an estimate of the adult population living in rental units by multiplying the number of adults in a block group with the percentage of renter-occupied housing units. This required assuming that the distribution of adults within block groups was evenly spread across housing units. I tested this assumption by using census 2000 data to compare Milwaukee's rate of rental to owner-occupied units with that of the population living in such units. The mean odds ratio of these two rates was .96, expressing near perfect proportionality. Then I generated an estimate of the number of men and women living in rental units by multiplying the adult rental population by the percentage of women and men in a block group. Doing so required assuming that men and women live in rental units at rates proportionate to their representation in the general population, an assumption verified by previous research (National Multi Housing Council 2009).

termine if, say, women who fell behind in rent were more likely to be evicted than men who did the same. My claims drawing on these data, then, are relegated to comparisons of different neighborhoods. Moreover, while court data record the location of all documented formal evictions, they provide only a partial view of the entire population affected by eviction. For one, court records do not capture informal evictions—from illegal strong-arm lockouts to unofficial agreements—that occur beyond the purview of the court. Off-the-books evictions may account for a significant fraction of landlord-initiated moves. Joe Parazinski,⁷ a white building manager who lived and worked in the majority-black inner city—and who preferred paying tenants \$200 to leave over taking them to eviction court, as the former option often was cheaper—once told me, “For every eviction I do that goes through the courts, there are at least 10 that don’t.” Moreover, because only leaseholders’ names appear in the eviction records, there is no way of knowing if, say, children, grandparents, or romantic partners were living with leaseholders at the time of the eviction. While those informally evicted remain beyond the scope of this study, it was possible to gain a fuller picture of all people affected by court-ordered evictions by collecting survey data.

Court Survey

The Milwaukee Eviction Court Study was an in-person survey of tenants appearing in eviction court every weekday (save one) between January 17 and February 26, 2011. During this six-week period, 1,328 eviction cases were filed. In 378 cases, tenants appeared in court; of those, 251 were interviewed, resulting in a response rate of 66.4%. Brief interviews were conducted with tenants immediately after their court hearing. All tenants appearing in court whose name appeared on the Eviction Summons and Complaint—a court-issued document, printed on pink paper, listing the charges against them—and therefore would appear in the eviction records, were eligible. Tenants were asked about their current residence (e.g., rent, number of bedrooms), the outcome of their hearing (e.g., evicted, case dismissed), and their demographic information. Whenever possible, interviewers electronically scanned each tenant’s Summons and Complaint or copied its contents directly onto the questionnaire ($N = 105$). Doing so provided high-quality data about the reasons for eviction, these being listed clearly on the document. If tenants did not have their Summons and Complaint or if they preferred interviewers not look at it, they were asked to provide the reasons they were called to court ($N = 146$). Additionally, the survey collected a roster of all adults and children

⁷ All names are pseudonyms.

in each household. Besides being asked to provide the race, age, and sex of all adults who lived with them, respondents also were asked about their relationship to each adult as well as if the adult's name appeared on the pink papers.

Survey data allowed me to look beyond leaseholders to see all people in a household exposed to the hardship of eviction. Although this survey encompassed but a fraction of families evicted in Milwaukee, its sample was large enough that meaningful insights could be drawn from it. More information about the survey can be found in the appendix.

Fieldwork

From May to September 2008, I lived in a poor, predominantly white neighborhood in Milwaukee: Green Street Mobile Home Park. From October 2008 to June 2009, I lived in a rooming house in the city's predominantly black inner city. While in these two neighborhoods, I met several people going through an eviction. Eleven eviction cases became the ones I followed most closely and analyzed most completely. They involved five households evicted from the trailer park—two single white men, an older white woman with grown adult children, a white single mother of three, and a white couple with four children—and six households from the inner city: a single black woman, three black single mothers (one with six children, two with three), a single black father of two, and a black couple with two children. Over the course of my fieldwork, I followed these individuals and families throughout the eviction process, from the initial termination of tenancy to homelessness brought about by eviction. I spent thousands of hours with them in homes, churches, courtrooms, shelters, social service offices, and cities and towns beyond Milwaukee. I also established relationships with several landlords and building managers, including two landlords from whom I rented during my fieldwork. Six landlords who owned and managed properties in poor neighborhoods—three white and three black, all men with one exception—as well as two building managers, both white men, allowed me to spend time with them, helping them repair their properties, collect rent, screen tenants, and deliver eviction notices. (For a more detailed discussion of the fieldwork, see Desmond [2012].)

Gaining *entrée* is among the most difficult and frustrating aspects of fieldwork. *Entrée* is not something one does only once at the beginning of the fieldwork. One does not walk into the field as one walks through a door. Rather, ethnographers must maintain *entrée* day in and day out, and trust and friendship, under the unusual (and objectifying) context of research, are often tenuous at best (Rabinow 1977, pp. 29–30; Duneier 1999, p. 338). Gaining *entrée* in one group is hard enough; harder still is

the process of gaining access to a network of people entangled in antagonistic relationships, people who often dislike and distrust one another. While spending time with tenants and landlords allowed me to analyze eviction from multiple vantage points, it required that more effort be dedicated to gaining *entrée* and maintaining trust. Some tenants suspected I was working undercover for the police or for the landlord, whom they sometimes referred to as “your friend,” whereas some landlords refused to discuss the details of a tenant’s case. Access to one person often complicated access to another. Each case was unique, different people won over by different means, but generally by being persistent, stressing that my goal was to study eviction from different angles, and sharing my resources (e.g., car, cell phone), I eventually gained *entrée* into the lives of different players in the process. As time passed, both landlords and tenants grew used to my notepad and digital recorder, both of which I usually carried to record conversations and interactions, the same way you grow used to a friend’s cigarettes as she repeatedly lights up.

Although sociological data can be found virtually everywhere, only a thin slice of material, that which conforms to conventional forms, typically counts as such. “Every researcher,” Bourdieu once remarked, “grants the status of data only to a small fraction of the given, yet not, as it should be, to the fraction called forth by his or her problematics, but to that fraction vouchsafed and guaranteed by the pedagogical tradition of which they are part and, too often, by that tradition alone” (Bourdieu and Wacquant 1992, p. 225). During my fieldwork, I collected a wide variety of evidence, conventional and otherwise, to bolster the validity of my observations. In this article, I supplement ethnographic observations with handwritten rent rolls, fair market rent estimates, and other data sources. And this being ethnography—that old method of immersing oneself into people’s daily routines and systematically recording social processes as they unfold in real time—I prioritize firsthand observations of social action over individuals’ accounts of it (Liebow 1967).

ESTABLISHING THE DISCREPANCY: RESULTS FROM THE QUANTITATIVE ANALYSIS

Eviction Records Analysis

In an average year, Milwaukee tenants living in 3.5% of all occupied rental units—and 7.2% of those living in occupied rental units in high-poverty neighborhoods—were evicted. Landlords evicted an estimated 15,983 adults and children from 5,995 units in an average year.⁸ Of those,

⁸ I estimated the total population forced to move by court-ordered evictions by mul-

TABLE 1
HOUSEHOLD EVICTION RATE BY NEIGHBORHOOD RACIAL COMPOSITION

NEIGHBORHOODS	BLACK		WHITE		HISPANIC	
	Rate (%)	Evictions	Rate (%)	Evictions	Rate (%)	Evictions
All (<i>N</i> = 703)	7.44	2,759	1.36	1,187	3.93	276
High-poverty (<i>N</i> = 195)	8.23	1,561	.68	9	4.11	156
Hypersegregated (<i>N</i> = 483) ...	7.61	1,652	1.20	561	3.24	14

NOTE.—Data are taken from Milwaukee County eviction records, 2003–7, and GeoLytics population estimates, 2003–7. Annual means are reported. Pairwise comparisons found significant differences (at least at the *P* < .01 level) in eviction rates between black, white, and Hispanic neighborhoods.

an estimated 7,352 people (46%) were from black neighborhoods, 3,197 (20%) were from white neighborhoods, 639 (4%) were from Hispanic neighborhoods, and 4,795 (30%) were from mixed neighborhoods. The yearly average eviction rate for renter-occupied households located in black neighborhoods was 7.4%, compared to 3.9% in Hispanic neighborhoods and 1.4% in white neighborhoods. These rates did not change dramatically after I limited the analyses to high-poverty or hypersegregated neighborhoods (see table 1). The yearly average eviction rate in mixed neighborhoods in which blacks accounted for the largest racial or ethnic group was 6.2%, compared to 3.9% in majority-white mixed areas and 3.5% in majority-Hispanic mixed areas.

Within the eviction records, women were disproportionately represented among tenants, men among landlords. Between 2003 and 2007, women made up 60.6% (*N* = 21,975) of evicted tenants; men made up 34.4% (*N* = 12,473). Of the 32,506 evicting landlords represented in the records, 4,685 (14.4%) were women, 12,207 (37.6%) were men, and 14,763 (45.4%) were listed as companies.

In white neighborhoods, women and men were evicted at fairly equal rates, whereas black and Hispanic areas saw significantly more women evicted than men. Figure 1 displays the average annual count of evicted women and men by racial composition of neighborhood. In an average year, 742 women and 763 men from white neighborhoods, 212 women and 119 men from Hispanic neighborhoods, and 2,155 women and 862 men from black neighborhoods were evicted through the court system. Each year, the average number of women evicted from black neighborhoods was more than double that of men from those neighborhoods and

tiplying the number of eviction cases in a block group by the average household size of occupied rental units in that block group. Since there is good reason to suspect the size of evicted households to be larger than average—many evicted households are made up of single mothers with children—this is likely a conservative estimate.

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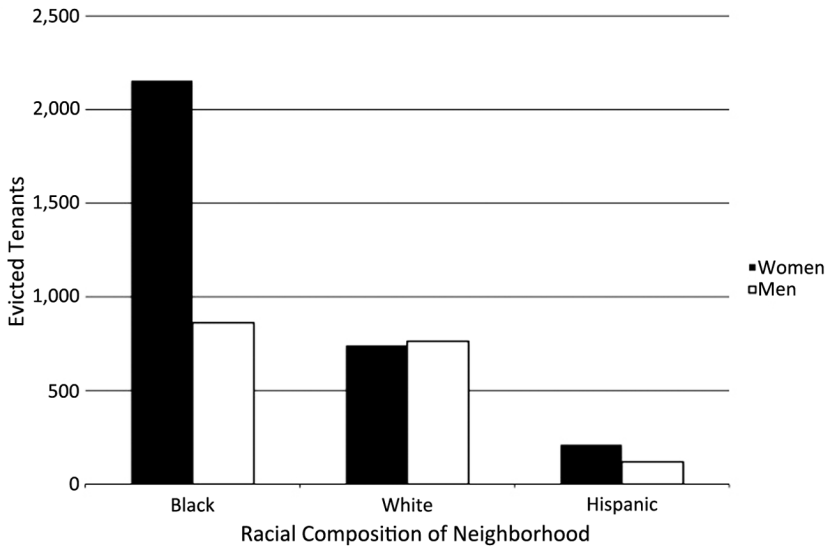


FIG. 1.—Average annual count of evicted tenants; $N = 24,211$ tenants evicted from 703 block groups. Data are from Milwaukee County eviction records, 2003–7, and GeoLytics population estimates, 2003–7.

almost triple that of women from white neighborhoods. In black neighborhoods, women outranked men within the eviction records by a rate of 2.5:1; in Hispanic areas, women outranked men by a rate of 1.78:1.

As displayed in table 2, the average eviction rate of female renters was higher than that for male renters in black and Hispanic, but not in white, neighborhoods. In an average year, 1.05% of female renters and 1.14% of male renters were evicted from white neighborhoods. In Hispanic neighborhoods, 2.51% of female renters and 1.16% of male renters were evicted in an average year. The discrepancy was largest in black neighborhoods, where 5.55% of female renters and 2.94% of male renters were evicted in an average year. The eviction rate of female renters from black neighborhoods was 1.87 times that of male renters from those neighborhoods and 5.24 times that of female renters from white neighborhoods. This general pattern remained when comparisons were limited to high-poverty and hypersegregated neighborhoods.

Each year in black and Hispanic neighborhoods, there were, on average, more than two women for every man evicted through the court system. While the average risk ratio was 0.91 in white neighborhoods, indicating (slight) male overrepresentation within the eviction records, it was 2.57 in Hispanic neighborhoods and 2.32 in black neighborhoods, indicating (substantial) female overrepresentation. Within-neighborhood t -tests (used

TABLE 2
GENDER DIFFERENCES IN EVICTION RATES

	NEIGHBORHOOD RACIAL COMPOSITION			MEAN COMPARISON STATISTIC (<i>t</i>)		
	Black	White	Hispanic	Black and White	Black and Hispanic	White and Hispanic
All Neighborhoods						
Female eviction rate (%)	5.55	1.05	2.51	42.02***	9.69***	8.32***
Male eviction rate (%)	2.94	1.14	1.16	19.03***	8.70***	.09
Risk difference (%)	2.62	−.09	1.35	29.15***	5.28***	8.33***
<i>t</i> -score ^a	(27.17)	(2.03)	(13.65)			
Risk ratio	2.32	.91	2.57	25.3***	1.67	19.26***
<i>t</i> -score ^b	(22.90)	(3.85)	(10.28)			
Block groups . . .	191	480	32			
High-Poverty Neighborhoods						
Female eviction rate (%)	5.86	.67	2.51	10.65***	10.25***	8.93***
Male eviction rate (%)	3.05	.75	1.16	7.33***	9.01***	3.40***
Risk difference (%)	2.81	−.08	1.35	7.71***	5.78***	8.46***
<i>t</i> -score ^a	(25.84)	(.72)	(13.39)			
Risk ratio	2.39	.78	2.63	6.35***	1.48	6.53***
<i>t</i> -score ^b	(21.36)	(1.73)	(10.15)			
Block groups . . .	153	13	29			
Hypersegregated Neighborhoods						
Female eviction rate (%)	5.60	.92	2.29	36.87***	3.27***	2.26*
Male eviction rate (%)	2.91	1.03	.62	16.52***	3.33***	.63
Risk difference (%)	2.69	−.11	1.67	24.43***	1.28	2.90**
<i>t</i> -score ^a	(23.31)	(1.98)	(4.02)			
Risk ratio	2.35	.84	3.30	21.77***	1.75	8.93***
<i>t</i> -score ^b	(19.50)	(5.43)	(2.51)			
Block groups . . .	132	348	3			

NOTE.—Data are from Milwaukee County eviction records, 2003–7, and GeoLytics population estimates, 2003–7. Annual means are reported.

^a Within-neighborhood *t*-test of risk difference equals zero (if risk difference equals zero, it implies no gender difference).

^b Within-neighborhood *t*-test of risk ratio equals one (if risk ratio equals one, it implies no gender difference).

* *P* < .05.

** *P* < .01.

*** *P* < .001.

to detect gender differences) found the mean risk ratios in all neighborhoods to be statistically significant. Between-neighborhood *t*-tests (used to detect differences across neighborhoods) demonstrated that the average annual risk ratio of black neighborhoods could not be distinguished from that of Hispanic neighborhoods; however, the discrepancy between the female and male eviction rates was significantly larger in these neighborhoods than in white neighborhoods. Comparisons of risk difference yielded similar patterns, with one important exception: The risk difference statistic for black neighborhoods was found to be significantly higher than that for all other neighborhoods, implying that the difference between the male and female eviction rates in black neighborhoods was greater than that in both white and Hispanic areas.

Court Survey Analysis

Table 3 displays the characteristics of tenants who participated in the Milwaukee Eviction Court Study: 74% were black, 18% were white, 5% were Hispanic, and 3% were Asian or American Indian. With 147 respondents, black women constituted the largest group. The total number of black women exceeded that of all other groups combined. The age of respondents varied widely—the youngest was 19; the oldest was 69—indicating that eviction affects people at multiple points along the life course. The median age was 33. Not only were most respondents very poor—the median monthly household income was \$935—but 94% of them received no housing assistance. Meanwhile, the average tenant paid \$590 a month in rent. The majority of respondents dedicated at least 50% of their household income to rent, with a full third devoting at least 80% to it. Given this, it is unsurprising that 92% of respondents were summoned to court for missing rent payments. The median amount of back rent owed was \$900. The majority of respondents lived with children, over a third of them women who lived with no other adults. Of the 353 children living in respondents' households, 115 belonged to those that received judgments for eviction. The average evicted child was 7, the youngest 4 months old. Over 77% of these children lived in African-American households. And where did evicted families plan to go? Eleven were planning on staying with friends or family. Twelve had found a new place. Four were headed to a homeless shelter and two to a hotel. Two people had resigned themselves to the street, another to his car. But most evicted families—40 of them—simply did not know where they were going to go.

Not all tenants appearing in court were evicted. Thirty interviewees (11.9%) had their case dismissed, 59 (23.5%) had to return to court on another day, and 90 (35.9%) settled their case with a stipulation agree-

TABLE 3
TENANTS IN EVICTION COURT

Variable	Women	Men
Black	147	39
White	20	25
Hispanic	8	5
Other	6	1
	Yes	No
Receives housing assistance	14	236
Lives with other adults	96	155
Lives with children	155	94
	Median	Min–Max
Age	33	19–69
Rent to income ratio (%)	54	4–186
Household income (\$)	935	0–25,000
Monthly rent (\$)	573	225–1,400
Rent and fees owed (\$)	900	0–9,000

NOTE.—Data are from the Milwaukee Eviction Court Study, 2011.

ment.⁹ The remaining 72 (28.7%) were evicted and ordered to vacate the premises in short order. That most tenants who appeared in court and participated in the survey did not receive an immediate eviction judgment should not cloud the fact that the vast majority of eviction cases processed by the court did. A default eviction judgment was entered for the 940 cases in which tenants did not appear in court, providing that the landlord or a representative was present.

Of the 72 evicted tenants, 35 (49%) were black women and 13 (18%) were black men. Thirteen white men and four white women also were evicted, along with four Hispanic men and three Hispanic women. This pattern—black women outnumbering all other groups among the evicted—mirrors that identified in the eviction records. But does it hold once we account for other adults in the household? Ninety-six interviewees claimed to be living with other adults, 76 lived with one other adult, 15 lived with two, and 5 lived with three or more. These included 61 significant others, 54 kinsmen, 8 friends, and 1 caretaker. All adults living in households represented by this survey ($N = 375$), along with those living in the subset of households that received eviction judgments ($N = 112$), are displayed in figure 2. The black portion of the bars represents

⁹ In these situations, tenants agree to vacate the premises or pay their debt by a certain date. If tenants satisfy the agreement, their eviction is dismissed; if they do not, landlords may file for a writ of restitution and evict them without having to return to court. Thus, some stipulation agreements will end in dismissal, others in eviction.

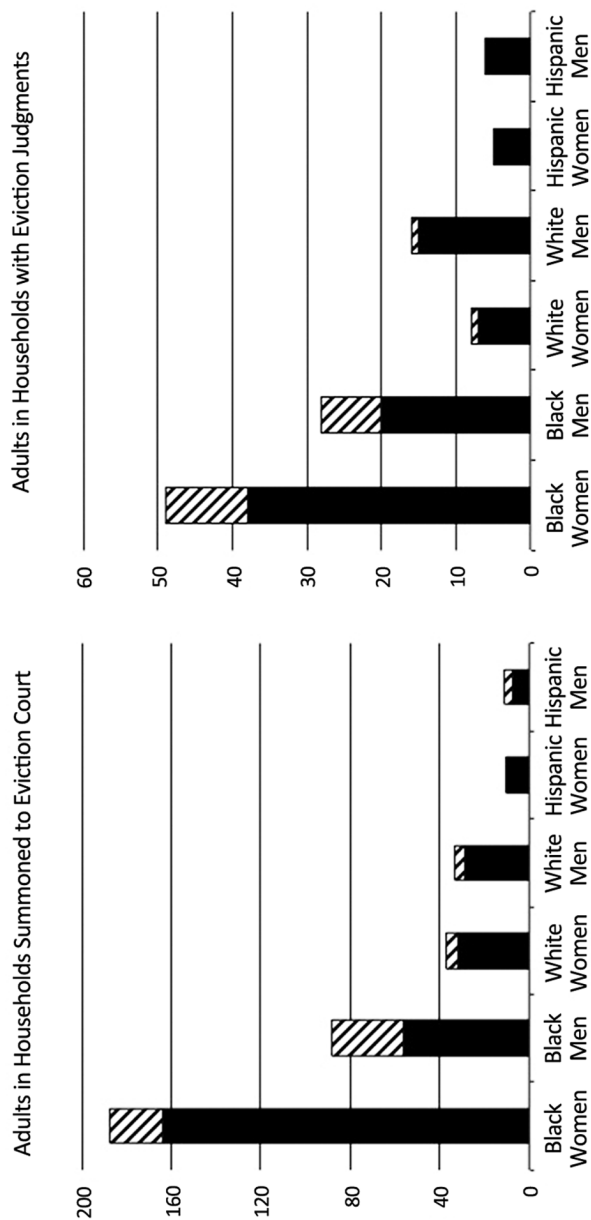


FIG. 2.—Adults living in households appearing in eviction court. The black portion of bars represents adults listed on the Summons and Complaint; the striped portion represents adults not listed. Note the different scales. Data are from the Milwaukee Eviction Court Study, 2011.

adults who were listed on the Summons and Complaint; the grey portion represents those who were not (and thus who would not have appeared in the eviction records). It is notable that only 70 adults of a total 375, including 21 of 112 living in households that received eviction judgments, were not listed. Black men made up the largest group of adults not listed on the Summons and Complaint ($N = 32$), but black women were not far behind ($N = 24$).

After all adults in the household, including those not listed on the Summons and Complaint, were accounted for, black women continued vastly to outnumber all other groups. They accounted for half of all adults living in households appearing in eviction court (188 of 375) and 44% living in households that received eviction judgments (49 of 112). The survey data suggest, then, not only that black women are “marked” by eviction at higher rates—collecting evictions on their records—but that they are exposed to the hardship of eviction at higher rates as well. Black women are more likely to be evicted on paper and in practice.

Summary of Quantitative Findings

These twinned quantitative analyses have demonstrated, first, that eviction affected a significant number of Milwaukee households, especially those in inner-city black neighborhoods. Between 2003 and 2007, roughly 16 evictions occurred each day. Almost half of all evictions took place in black neighborhoods. This disparity—the clustering of evictions in predominantly black neighborhoods—reflects the overrepresentation of African-Americans among the urban poor as well as their concentration in segregated and disadvantaged neighborhoods (Wilson 1987; Sampson and Sharkey 2008). In Hispanic and black, but not in white, neighborhoods, female renters were more than twice as likely as male renters to be evicted through the court system. In an average year in Milwaukee’s high-poverty white neighborhoods, one male renter of 134 and one female renter of 150 were evicted through the court system; in its high-poverty Hispanic neighborhoods, one male renter of 86 and one female renter of 40 were evicted; and in its high-poverty black neighborhoods, one male renter of 33 and one female renter of 17 were evicted. The survey results support the court records analysis, finding that among evicted tenants, black women outnumbered black men by 1.75:1 and white women by 6.13:1. Women from black neighborhoods made up only 9.6% of Milwaukee’s population but accounted for 30% of evicted tenants. The question is why. The following section draws on ethnographic data to identify several mechanisms underlying this discrepancy.

EXPLAINING THE DISCREPANCY: RESULTS FROM FIELDWORK

Structural Constraints: Work, Welfare, and Housing Costs

In poor black communities, women are more likely to work in the formal economy than men, many of whom are marked by a criminal record and unemployed at drastically high rates (Pager 2007; Wilson 2009). In Milwaukee, half of working-age (16–64) black men are out of work (Levine 2008). Most landlords will not approve the rental applications of unemployed persons or those with criminal records. In the office of Affordable Rentals, a major property management company in Milwaukee, a paper taped to the wall announces, “We reject applicants for the following reasons: . . . Felony drug or violent crime conviction within the last 7 years; misdemeanor drug or disorderly conduct crime charges within the last 3 years; non-verifiable income or insufficient income.” In inner-city black communities, women are disproportionately represented in the formal low-wage service sector (Newman 1999; Collins and Mayer 2010) and therefore are able to provide the necessary income documentation when securing a lease. Verifiable income also may come in the form of public assistance, namely, welfare. Roughly 75% of Milwaukee’s welfare recipients are African-American, and virtually all of those are single mothers (Wisconsin Department of Workforce Development 2006). In high-poverty black communities, then, we should expect women’s names to be more likely to appear on an income check, on a lease, and, if things fall apart, on an eviction record.

Stagnant incomes and rising housing costs.—Women from poor black neighborhoods not only are overrepresented on leases but also tend to have a harder time making rent than male leaseholders from similar neighborhoods. There are several reasons for this. First, although many men in poor black neighborhoods are excluded from the population at risk of collecting evictions on their records (lessees), those counted among this population often are better off than their female counterparts. In 1999, 81% of employed black men in Milwaukee worked full-time, compared to 75% of employed black women.¹⁰ And black men earned more: in 1999, the median annual income for full-time workers in Milwaukee was \$30,174 for black men and \$24,437 for black women. The difference is the equivalent of a year’s rent for a one-bedroom apartment at Milwaukee’s 1999 fair market rent.¹¹ With respect to income, however, the

¹⁰ All statistics in this paragraph are the author’s calculations, based on the 2000 U.S. Census.

¹¹ Calculated by the U.S. Department of Housing and Urban Development (HUD), fair market rents are gross estimates that combine rent and utility costs. Used to determine payment amounts for various housing programs, HUD calculates them at the 40th percentile of each city’s rental distribution.

biggest difference between male and female leaseholders in poor black neighborhoods is the fact that single mothers on welfare—with annual incomes of \$8,076—number among the latter.

Many women in inner-city neighborhoods not only have smaller incomes than men but also have larger expenses as well. Single-mother households make up roughly 58% of all African-American households in Milwaukee (Wisconsin Women's Council 2006). Many cannot rely on regular support from their children's fathers to help pay for school supplies, clothes, food, medical care, and other expenses related to raising a child (Cancian and Meyer 2005). To avoid child support orders, the non-custodial fathers with whom I lived in the rooming house worked in the informal economy and, when able, saved their money by hiding it in their room or even with me. It is important to recognize, too, that single mothers, given their children, must seek out larger and more expensive housing options than noncustodial fathers, who can sleep on someone's couch or, as was the case with my housemates, rent an inexpensive room. Each of the fathers with whom I lived rented a room for \$400 a month (utilities included), a good deal less than the two-bedroom units many single mothers I met rented for \$550 (utilities not included).

Welfare stipends have remained completely stagnant over the past decade, while the cost of housing has increased by historic proportions. In 1997, the fair market rent for a one-bedroom apartment in Milwaukee was \$466. In 2008 it was \$665. For a two-bedroom apartment, that number jumped from \$585 in 1997 to \$795 in 2008; for a three-bedroom apartment, from \$733 to \$1,002. During this 10-year span, welfare stipends did not change. The result is that *the average cost of rent, even in high-poverty neighborhoods, is quickly approaching the total income of welfare recipients* (see fig. 3). Since replacing Aid to Families with Dependent Children in 1997, Wisconsin Works (W-2) has provided two types of monthly stipends: \$673 for beneficiaries who work and \$628 for those who cannot, usually because of a disability. Women resigned to low-wage work fare slightly better but not by a wide margin. Minimum wage in Wisconsin rose from \$5.15 to \$5.70 in 2005 and from \$5.70 to \$6.50 in 2006. If a woman working for minimum wage logged 35 hours a week, the estimated number of hours the average low-income single mother works (Edin and Lein 1997), she would have taken home \$721 a month between 1997 and 2004, \$789 a month in 2005, and \$910 a month between 2006 and 2008 (before taxes). These increases are far outpaced by the climbing cost of housing (Wardrip, Pelletiere, and Crowley 2008). And yet, the last decade has witnessed federal spending on affordable housing programs decrease dramatically. Between 1995 and 2007, federal spending on low-income housing assistance fell by more than 20%—both as a share of all nondefense discretionary spending and as a share of gross domestic

Eviction and the Reproduction of Urban Poverty

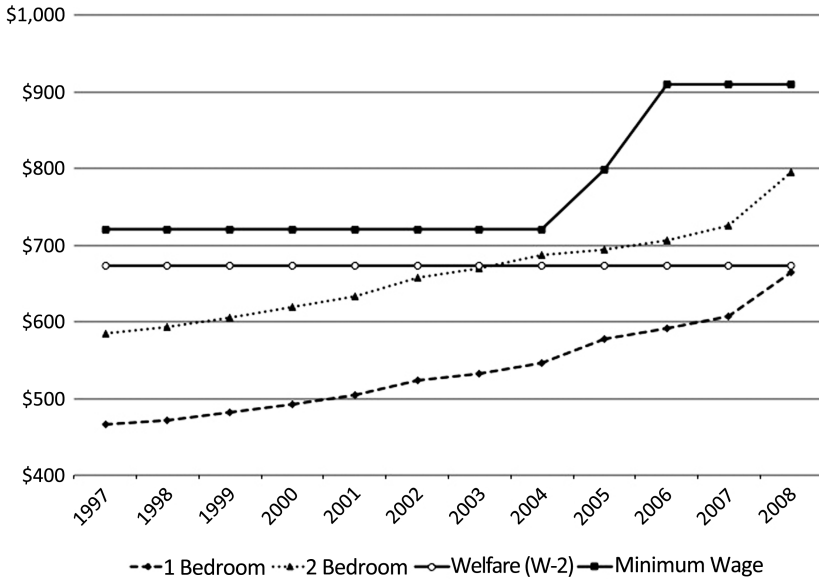


FIG. 3.—Milwaukee County fair market rent, welfare stipend, and minimum wage (140 hours/month). Data are from U.S. Department of Housing and Urban Development, 2009; Wisconsin Department of Children and Families, 2009; and State of Wisconsin Equal Rights Division, 2009.

product. Today, the majority of poor renters do not benefit from federal housing programs (Pelletiere et al. 2008; Rice and Sard 2009).

These structural conditions help explain why single mothers like Patrice Hinkston often must deliver to landlords upward of 80%–90% of their income check. Patrice, 24, is a black single mother of three who dropped out of high school in the eleventh grade. She and her mother, Doreen, 44 and a single mother of four, were evicted from a five-bedroom house in which they had lived for five years. Anxious to find subsequent housing, no matter the size or condition, Patrice, Doreen, and their children moved into a two-bedroom lower-duplex unit that rented for \$550 a month. The unit was in a state of disrepair. Its back door would not lock; the kitchen window was broken; there were several holes in the dirty walls; its toilet and shower regularly remained stopped up for days; its walls, sinks, floors, and cabinets crawled with roaches; and it was located on a dangerous street littered with abandoned buildings and street memorials for murder victims: teddy bears, Black and Mild cigars, and scribbled notes lashed to tree trunks. Three adults and five children living in this small apartment made for overcrowded conditions. So Patrice and her three children moved into the upper unit of the same duplex, another two-bedroom

apartment renting for the same price. Patrice worked part-time at Cousin's Subs, which paid her \$8.00 an hour. She made rent the first couple of months by relying on help from Doreen and by handing over to her landlord nearly all her paycheck. But after the manager at Cousin's trimmed Patrice's hours—Doreen could not stretch her disability check over the difference—the landlord evicted her, causing Patrice and her children to move back downstairs.¹²

Fixed incomes and unexpected expenses.—Avoiding eviction often requires adjusting quickly to unforeseen expenses, such as medical bills or bail money, or a sudden drop in income, from public assistance sanctions or losing hours at Cousin's Subs. Because such large portions of poor tenants' incomes already are devoted to rent, a relatively small expense—a new pair of shoes, a taxi fare across town—can cause them to fall behind. Renters adjust to irregular expenses by working overtime, relying on social contacts, hustling in the underground economy, or making money in other informal ways (e.g., donating plasma). Chester Watson preferred the latter two options when funds ran low. Chester and his longtime girlfriend, Myesha Davies, both 33-year-old African-Americans, supported two teen-aged children off Myesha's welfare check. To help his family pay the bills, Chester often found odd jobs. He would assist elderly neighbors move, run errands for the neighborhood weed man, mate his pit bulls and sell the puppies, or ring up Joe Parazinski (his old building manager and friend) and help him with landscaping or property maintenance.

Although women sometimes supplemented their income using similar tactics, many faced a series of difficulties when attempting to recover from unforeseen expenses. Many single mothers, for one, did not feel they could devote the time to work in the informal economy, given their child care responsibilities. Others were unwilling to sacrifice their dignity or to risk losing their children to Child Protective Services by participating in illicit trades. Mothers working in the formal economy, for their part, benefited little from putting in extra hours if doing so required paying more for child care. And for many, putting in extra hours simply was not an option their job would allow. But perhaps it was single mothers on welfare who faced the steepest challenge when attempting to bend their fixed income

¹² In a previous month, Patrice had used her Earned Income Tax Credit (EITC) to pay back rent and avoid eviction. This widespread use of the EITC helps to explain why, every year, evictions are lowest in February, when the majority of EITC payments are issued (see app. fig. A2), and perhaps why the majority of workers from inner-city Milwaukee claiming the EITC borrow on their credits through refund anticipation loans, paying steep fees to receive early payments (Quinn 2002). Tenants also sold food stamps to pay rent—\$2 of stamps for \$1 cash—even though getting caught could mean disqualification from the program. They compensated by going to food pantries or going hungry.

around emergency expenses. They could not work overtime, of course, and often the requirements of the welfare program—general equivalency diploma courses, life skills classes, trial jobs, community service—coupled with child care obligations, thwarted opportunities to earn money in the informal sector (see Hays 2003, pp. 33–61). Accordingly, when confronted with an unusual expense, single mothers already devoting the vast majority of their welfare stipend to rent had a difficult time making up the loss. Consider Arleen Belle, 38, a black woman and mother of six, whose income from welfare was \$628 a month. Two of Arleen's children—Jori (age 14) and Jafaris (age 6)—lived with her, two were in foster care, and two were grown. Like most of the single mothers I met, Arleen received little financial help from her children's fathers. In the summer of 2008, the city condemned the three-bedroom single-family house in which Arleen was living with Jori and Jafaris.¹³ Caught in a desperate situation, she eventually moved into a two-bedroom apartment in the inner city. The rent was \$550, or 88% of her income. A short while after moving in, her sister died, and Arleen contributed some money to the funeral expenses, falling a month behind in rent. The next month, she missed an appointment with her welfare caseworker and was sanctioned, her check cut by \$500. Two months behind, she was evicted and took her two boys to a domestic violence shelter.

Children.—Arleen would move from the shelter into a one-bedroom apartment in a large complex. But after the landlord learned that one of Arleen's sons was responsible for two police officers paying a visit to his building—Jori had fled home after kicking a teacher at school—he forced her to leave, carrying out an informal eviction. This incident highlights yet another disadvantage single mothers face: that children can cost landlords money and cause them “headache,” a well-traveled term in the landlord's vocabulary. Teenagers, especially young black boys like Jori, can attract the attention of the police. Tenants' children can result in landlords coming under increased state scrutiny in other ways as well. Young children can test positive for lead poisoning—as a disproportionate amount of those living in poor black neighborhoods do (Jones et al. 2009)—which in turn can lead to an abatement order from the Environ-

¹³ I met several people who had rented a unit the city later deemed “unfit for human habitation.” I also learned of several cases in which landlords, a month or two after having their property so condemned, would remove the green plywood placards city workers had drilled over their doors and windows and would re-rent the unit without addressing a single code violation. And I met landlords who purposely rendered their property condemnable (e.g., by cutting off the electricity) before placing an anonymous call to the city about their own property—a call that, in turn, resulted in officials removing the tenants, thereby providing the landlord with a free and expedited eviction.

mental Protection Agency (with a price tag in the thousands). Child Protective Services, too, can take an interest in a child's health, which in turn can lead a caseworker to inspect a unit for unsanitary or dangerous code violations. And because landlords often turn away large families seeking one- or two-bedroom apartments, directing them to larger and more expensive units, single mothers oftentimes lie to landlords out of necessity, telling them, for instance, that they have only one child rather than three. Overcrowded and cooped-up children are hard on apartments. They stir the ire of landlords, not only by being a recurrent source of noise but also by defacing property. Far from acting as a mitigating factor in the eviction decision, then, children often are an aggravating one (see Desmond et al. 2012).

Interactional Patterns: Gendered Reactions to Eviction Notices

It is undoubtedly true that a large part of the overrepresentation of women from poor black neighborhoods among evictees is explained by the structural arrangements I have just described. But there are other dynamics afoot as well. Although most evictions, technically speaking, are the result of a failed economic transaction (nonpayment), economic explanations alone cannot explain why landlords with dozens of defaulting tenants extend leniency to some and withdraw it from others (Lempert and Ikeda 1970). Many tenants who could be evicted are not, an observation verified by a simple analysis of Green Street Mobile Home Park's rent rolls. The trailer park, or simply, "the Park," as its residents dubbed it, was made up of 131 trailers and a disheveled office, cluttered with papers and keys and a dripping air conditioning unit. The office served as a gathering place where tenants could jaw with Lenny Lawson, the laid-back, mustached building manager, or Susie Dunn, his chain-smoking assistant. After establishing a good relationship with Lenny, I convinced him to let me copy the rent rolls from April to July 2008. These documents demonstrated that the relationship between nonpayment of rent and eviction was anything but straightforward. In July, for example, 47 tenants were behind. The least amount owed was \$3.88; the largest sum was \$2,156. Many tenants who owed over a thousand dollars were not evicted while some who owed far less were.

One of the latter was Larraine Jenkins, whose balance at the time of her eviction was \$516. A 54-year-old white woman, Larraine received a monthly Social Security disability check for \$714, out of which she paid \$550 to rent a small two-bedroom trailer. But in June, already behind \$366, she used \$150 of her rent money to pay a defaulted gas bill, withholding the remaining \$400. That same month, Jerry Warren, a 42-year-old white man who lived across from Larraine in an aqua-blue trailer he

painted himself, was served an eviction notice, which he promptly balled up and threw in the face of Tobin Charney, his landlord, barking, "Tobin, I don't give a shit about this fucking eviction! And Lenny, I don't care how old you are. I'll still take to whooping your ass something good!" A yelling match erupted, culminating in Jerry's stomping back to his trailer. Jerry's income was similar to Larraine's (he also received disability), and his rent was identical to hers. And like Larraine, Jerry would make good on his debt soon after being served the eviction notice. But Larraine was evicted, and Jerry was not. The most curious thing about these different outcomes, I would learn, was not that Jerry was not evicted but that Larraine was.

After all, Larraine did come up with the rent. Although she initially avoided Tobin after receiving notice that the sheriff's eviction squad had been summoned—later telling me, "When I got that green piece of paper, I couldn't deal with it. I was terrified by it, just terrified"—Larraine eventually approached him with the \$400 she had withheld.¹⁴

"When can you get me the other \$150?" Tobin was busy looking for a receipt book in the office.

"Tonight, ok—"

Tobin cut her off: "Okay. You give it to Susie or Lenny."

Susie took the eviction notice Larraine had been wringing in her hands. "You should go ask your sister for the rest," she advised, picking up the fax machine's phone and dialing a number she knew by heart. "Yes. Hello? I need to stop an eviction at Green Street Mobile Home Park," Susie said to the sheriff's office. "For Larraine Jenkins in W46. She took care of her rent."

Larraine sulked back to her trailer and began calling local agencies, none of which could help. "I can't think of anything else," she said blankly to the floor. Depressed, Larraine slept most of the following day. When she finally forced herself out of bed, she dialed a few more agencies and then family members. By the following week, she had convinced her younger brother, Ruben, to pay her balance. But when Ruben and Larraine approached Tobin with the money, they were rebuffed.

"No," Tobin said. "I don't want your money. You're out of here."

"But I have your money right here," Ruben insisted.

¹⁴ "I withheld my rent because I didn't know if we were going to have a park to live in," Larraine would tell her daughter over the phone. Larraine's suspicions were not unfounded. At the end of May, the Common Council's Licenses Committee voted not to renew the Park's license, citing its high levels of police calls and property code violations and finding that its conditions posed an "environmental biohazard" to residents. The license would be granted after Tobin agreed to a list of demands drafted by his alderman.

"I don't want it. You're out of here." Two sheriff officers and Eagle Moving Company arrived that afternoon.

"Some people we work with," Lenny told me. "But if they keep bullshitting and not making any attempt, then forget it. Five day out. . . . [With Larraine, it was] every month the same thing. Ain't got no money. Start calling other places getting help. How many times can you do that?"

Tobin and Lenny had had enough. But it is important to recognize that Larraine had nearly avoided eviction, as she had in the past, by borrowing money from a family member. Petitioning acquaintances, friends, or family members for help—a strategy on which many women relied—sometimes worked (though see Desmond [2012]). Indeed, the week after Larraine was evicted, a woman who owed double what Larraine did walked into the office and convinced Lenny not to serve her an eviction notice by telling him that her father-in-law was going to come through with the back rent.

Working off the rent.—Meanwhile, Jerry's confrontational response, belligerent as it was, aligned with Tobin's pithy and brusque way. Property management is a profession dominated by men—recall that landlords in the eviction records outranked women almost 3:1—as well as by a gruff, masculine way of conducting business.¹⁵ Although unequal in status, male landlords and their male tenants, both having been socialized to the rhythms and postures of masculinity, often engaged one another in a way that made sense. Not only did Jerry confront Tobin immediately after being served, but he later would offer to clean up the trailer park and attend to maintenance concerns if Tobin canceled the eviction. Jerry had done some work for Tobin in the past, painting trailer hitches and winterizing pipes. Having proved himself a reliable hand, he had established a "working off the rent" option should money run thin. Whereas Larraine rang up social services and family members, Jerry went straight to the man who had initiated the eviction. Over the course of my fieldwork, I observed a good number of men avoid eviction by laying concrete, patch-

¹⁵ Landlords cannot avail themselves of familiar corporate euphemisms—"downsizing," "quarterly losses"—nor can most of those who own and operate in poor neighborhoods elude their residents, which is why you will find in many landlords' rusted "rent collecting" wagons or vans a pistol, baseball bat, or can of mace. The result is a distinct thickening of the skin—nearly every landlord I met recalled at some point undergoing such a callusing—the cultivation of a manly disposition that allows landlords more or less to accept social inequality, not as an abstract topic for conversation or as a problem to be solved but, simply, as "the way it is." It is small wonder that, while other antiquated labels have been duly modernized ("secretary" to "office manager," "stewardess" to "flight attendant"), "landlord," appropriately feudal and paternalistic, enjoys wide use today. And small wonder, as well, that some of the most unabashedly masculine figures of the latter half of the 20th century have been real estate titans, from Robert Moses, America's greatest evictor, to Donald Trump.

ing roofs, or painting rooms for landlords. I never once witnessed a woman approach a landlord with a similar offer. The reason was in part that women already taxed by child care, welfare requirements, and work obligations could not spare the time. But it was perhaps in larger part that many women did not conceive of working off the rent as a valid possibility. It was not so much that women lacked a handyman skill set—many men making household repairs learned as they went along—what they lacked, rather, was the belief that such work was “women’s work.” As a result, oftentimes a woman staring down an eviction did not conceive of herself as a marketable resource. The exception was when women traded sex for rent.

I did meet men who were taken advantage of by landlords when working off the rent, putting in free labor only to be evicted anyway. When Lamar Richards fell behind, he begged—the word is accurate—his landlord to let him work off his debt. Lamar was a 48-year-old black man, who, after spending eight days in an abandoned house the previous winter on a crack bend, had to have his frostbitten legs amputated below the knee. Wheelchair bound, this single father of two teenaged boys received a monthly welfare stipend of \$628. Lamar fell \$310 behind in rent when, expecting to receive some additional funds that never came, he prematurely bought his sons shoes, clothes, and school supplies. His landlord, Sherrena Tarver, a 34-year-old black woman who owned 36 units throughout the inner city, credited to him \$50 for cleaning out a filthy basement strewn with mildewed clothes, trash, and dog feces. To satisfy the rest of his debt, Lamar convinced Sherrena to let him paint one of her vacant units. It took him the better part of a week to finish the large two-bedroom apartment. On his final day, I pitched in. Lamar crawled on the floor, his light black skin freckled with white paint, his stubs blistering, painting and praying for strength. “Jesus, get me through the day,” he would sigh. Then, quietly resolved, he would lift his roller.

When we finished, Lamar called Sherrena, who came straight over to inspect the work. After a swift march through the unit, Sherrena shook her head and began reprimanding Lamar. “I tried to work with you, and you disrespecting me with this motherfucking shitty ass job!”

“What I did is worth way more than two-sixty,” Lamar yelled back. “I’m trying to get you outta my pocket. I’m crawling around on my knees painting for you. And you gonna do me like this?” Sherrena refused to credit Lamar a cent toward his debt. She would later file an eviction order against him.

Ducking and dodging.—If women received no help from agencies, acquaintances, or relatives, they tended to practice avoidance (Babcock and Laschever 2003). This enraged landlords. “What I hate,” Joe Parazinski often said, “is when they duck and dodge me. If they don’t pick up the

phone or answer the door, I'm puttin' 'em the fuck out." If black women "ducked and dodged" more than their white counterparts, the reason was that their social networks tended to be far more resource deprived (see Heflin and Pattillo 2006). Whereas Larraine's brother, Ruben, was a middle-class homeowner, all of Patrice's and Arleen's siblings were poor. Crystal Mayberry, a 19-year-old black woman who received disability at the time of her eviction, was raised in the foster care system and was estranged from her biological and foster families. Or consider Vanetta Evans, a black single mother (age 21) raising three kids on welfare. At the time of her eviction, Vanetta's mother was homeless and her closest sibling, an older sister, also was on welfare. Just as black and white men alike tended to work off the rent, black and white women alike tended to seek help from social services, kin, new acquaintances, and friends when facing eviction. But because white women tended to be connected to more people in better positions to help, they were more likely to avoid eviction.

I observed some men avoid their landlords after receiving an eviction notice, just as I witnessed some women confront their landlords after receiving one. But because of the powerful ways gender structures interaction (Ridgeway 1997), providing individuals with expectations about appropriate ways to act, a woman who aggressively confronted a landlord commonly was branded rude or out of line. This may be why Bob Helfgott, a landlord of 20 years who owned dozens of properties in poor neighborhoods, believed lesbians to be difficult tenants. "The gay women," he sighed. "That angry dike thing, it drives me crazy. Okay, they're just terrible. Always complaining, . . . so they're tough to deal with." Likewise, not all men who responded heatedly to an eviction notice improved their situation. Consider what happened to Darius Jones, one of Joe Parazinski's tenants. A single black man who had lost his job, Darius was handed an eviction notice by Joe and his boss, Mark Morris, a white retired gym teacher. Darius gave Joe and Mark a verbal lashing, slamming his door after telling them, "You'd better not fucking come 'round here again." After that exchange, Mark wanted nothing more to do with Darius and instructed Joe to push forward with the eviction.¹⁶ What matters, here and elsewhere, is not the style of interaction itself but the correspondence between style and social position. Direct confrontation with a landlord, especially should he be a white man, was for black men like

¹⁶ If black men were more likely to be evicted informally, this could help explain the overrepresentation of women from black neighborhoods within the eviction records. Yet my ethnographic data yielded no evidence to this effect. Many landlords, intimidated by their black male tenants, preferred evicting them through the courts—allowing the authorities to intervene, as it were—to handling it themselves.

Darius a more uncertain and risky matter than it was for white men like Jerry (Wacquant 2005).¹⁷ Nevertheless, many black men were able to avoid eviction by working off the rent, whereas many black women, should they receive no help from social services or social networks, ducked and dodged their way to eviction.

Reporting a landlord.—Instead of ducking and dodging, some women confronted their landlord through an intermediary. I am thinking here of the times they reported their landlord to the Department of Neighborhood Services (DNS) for failing to address housing problems. Many low-income black women—who lived in some of the city’s worst housing stock, overwhelmingly were leaseholders, and often preferred to avoid direct confrontation with their landlord—relied on this service. But those who did greatly increased their risk of eviction, for there are few things landlords detested more than a clipboard-in-hand building inspector scrutinizing their property for fine-generating code violations. Consider what unfolded one evening when Sherrena and I were driving through the inner city. Sherrena stopped to speak with a woman named Elizabeth, a new tenant she had allowed to move into one of her more run-down properties with a partial rent payment. A young black woman, Elizabeth was sitting on her stoop, hushing a colicky baby and talking with her mother. Upon seeing Sherrena, Elizabeth immediately began protesting. “My son is sick because my house is cold. I mean, the heat don’t come on, the window have a hole in it, and I’ve been waiting patiently.”

As the conversation developed, Sherrena learned that Elizabeth and her mother had called DNS. Sherrena rebutted, speaking to Elizabeth’s mother: “That wasn’t right for you to do that because I was working with her. . . . Now, I’m willing to work with her, but she didn’t pay all of her rent this month either. . . . And now, I don’t have any other choice.”

“Then fix the window,” Elizabeth’s mother replied.

“. . . It’s too late now. The damage is done.” Sherrena shook her head and, hands on her hips, peered down at Elizabeth. “It’s always the ones that I try to help that I have the problems out of. And I’m not saying that you a problem, but it’s just that, somebody else is involved, and you the one living here. So it puts you in a spot.”

“Well, let me ask you something.” Elizabeth’s mother stepped closer.

¹⁷ Some men in poor black neighborhoods had no contact with landlords. There, women sometimes excluded from their rental application any mention of men who also would live with them (namely, romantic partners) for fear that doing so would result in their application being turned down on account of the men’s criminal background. A man living in an apartment without the landlord’s knowledge may have wished to offer to work off the rent—and his doing so may have helped to prevent the eviction—but the very act of making his existence known would itself have been legal grounds for eviction.

"If this was your daughter and these were your grandkids, what would you do?"

"I would have definitely made a connection with the landlord and *not* called the city."

A few more words were exchanged, and Sherrena stepped briskly back to the car. Once inside, she vented to me: "They have a lot of fucking nerve to act that way. . . . She already owed me four [hundred], now she owes me more, so I'm coming back to give her a five-day [eviction] notice."

"You are?" I asked.

"Mm-hm. Because she got somebody else in her business, when me and her had an understanding and an agreement. . . . Now I'm gonna have to deal with the building inspector, and I don't like that."

". . . Now, hold up, you weren't gonna serve her a five-day before now?"

"No," Sherrena answered. "I was gonna work with her. But why should I work with her now? Because I'm gonna be out of more money dealing with the city now. I don't have *all of my money*. If I had all of my money, I'd just have to choke it up. But, see, the lady now feels like shit."

"Who, the tenant?"

"The mother. . . . Now she wants to say, 'Please don't take this out on my daughter.'"

"But you're going to."

"I sure am."

Sherrena filled out the paperwork that evening and returned after nightfall to Elizabeth's apartment. Not stopping to knock, she walked straight through the open door and handed Elizabeth the eviction notice, saying, "Here you go. Have a nice evening. I hope you get some assistance."

Sherrena turned on a dime—from helping a down-and-out tenant to evicting her—once she learned a building inspector had been called. While Milwaukee law forbids landlords from retaliating directly against tenants who contact DNS, landlords may at any time evict tenants for other reasons (e.g., nonpayment)—a decision at which some would not have arrived had a complaint never been levied.¹⁸

¹⁸ The Milwaukee Police Department also plays a role in exacerbating women's risk of eviction, specifically through its ordinance regarding "nuisance properties." As I have shown elsewhere (Desmond and Valdez 2012), this ordinance results in many renting women in abusive relationships being forced to choose between calling the police on their abusers (only to risk eviction) and staying in their apartments (only to risk more abuse).

Summary of Ethnographic Findings

After conducting sustained ethnographic fieldwork among evicted tenants and their landlords, I was able to identify multiple mechanisms that help explain why in poor black neighborhoods women are evicted at such high rates. First, with respect to structural constraints, women from poor black neighborhoods are overrepresented in the eviction records because men from these neighborhoods are overrepresented in the criminal justice system and on the unemployment rolls. That is, unemployed and formerly incarcerated individuals, among whom a sizable number of low-income black men rank, are unable to obtain leases in their name, resulting in a disproportionate number of poor black women, who collect verifiable income, acting as leaseholders. If ends cannot be met—which often is the case, as the cost of housing has risen steadily during the past decade whereas low wages and welfare stipends have remained comparatively dormant—it will be their name tarnished by eviction, a consequential blemish that can remain long after the hardships associated with an involuntary move have passed. In inner-city black neighborhoods, women not only are overrepresented on leases but also are disadvantaged in relation to male leaseholders from similar neighborhoods. Broadly speaking, they bring in less income but pay more in rent. Many women's incomes, moreover, are fixed, making them especially vulnerable to unexpected expenses. And their children can cause landlords problems: damaging property, annoying neighbors, and attracting unwanted attention from state agencies. The combination of these factors increases the risk of eviction for women living in poor black neighborhoods, in general, and for single mothers among them, in particular, as those like Patrice and Arleen often have enough money to secure an apartment but not enough to keep it.

These structural arrangements alone do not constitute a complete explanation, for despite first appearances, evictions are not simply the consequence of tenants' "misbehavior" or landlords' financial accounting, nor are they governed strictly by formal or deterministic rules. Evictions also are the outcome of interactions among people occupying different positions in social hierarchies and possessing different dispositions and interactional styles, conditioned by those positions (Lempert and Monsma 1994; Bourdieu 2005). Upon receiving an eviction notice, many men address the landlord directly and offer to work off the rent, whereas many women approach agencies or network ties for assistance. While the former strategy requires only that the tenant be willing and able to put in the labor, the latter works only when tenants are connected to people or organizations in positions to help. Because poor black women's social networks tend to be far more resource deprived than those of their white

counterparts, their eviction avoidance strategies often prove ineffective. And when tenants confront their landlord by reporting him or her to DNS—a service designed to protect the city’s most defenseless renters and one on which many poor black women rely—a circuitous process is set in motion whereby the city applies pressure to the landlord, who then applies it to the tenant. Summoning a building inspector can sway landlords from working with poor tenants, who often are chronically behind in one way or another, to evicting them. These considerations often force low-income families to choose either living with roaches, lead paint, clogged sewers, exposed wires, no heat, broken windows, and other degrading and unsafe conditions or eviction.

CONSEQUENCES OF EVICTION

What are the consequences of eviction? One is that those with an eviction on their record often cannot secure decent, affordable housing. A good number of landlords simply will not rent to them (Kleysteuber 2006). Bob Helfgott’s opinion is the rule: “Evictions are the number one problem that I will not take. . . . If you’ve been evicted in the last two years, I’m not gonna take you.” Affordable Rentals rejects all applicants who have been evicted in the last three years. I have even met a landlord who goes so far as to reject applicants with dismissed evictions on their record, saying, simply, “You know something happened, and I just don’t want the headache.” Not surprisingly, then, many evicted tenants look for months without securing a place to stay, their homelessness manifest in nights spent in shelters and on friends’, relatives’, or strangers’ floors or, sometimes, the street.

When evicted tenants do find subsequent housing, they often must accept conditions far worse than those of their previous dwelling. Because many landlords reject applicants with recent evictions, evicted tenants are pushed to the very bottom of the rental market and often are forced to move into run-down properties in dangerous neighborhoods. After the city condemned the three-bedroom single-family house Arleen was renting—one nested in a working-class black neighborhood—she moved into an apartment complex teeming with drug dealers. Fearing for her children, she then moved into a two-bedroom lower unit of a duplex. Once evicted from there, she moved into a one-bedroom apartment in a complex considered a “nuisance property” by the city. After being informally evicted from that building, Arleen secured beds for herself and her two boys at a shelter outside Milwaukee and, after a two-month search, found a landlord who would rent her a dilapidated two-bedroom apartment on a high-crime block. It was not long before she and her boys were robbed at

gunpoint in that apartment, causing her to flee to another shelter (this one roughly an hour's drive from Milwaukee). As Arleen's case demonstrates, eviction almost always leads to increased residential instability and homelessness, as well as to a *downward move*: a relocation to a disadvantaged neighborhood and/or to substandard housing.

It often was the case, too, that families lost many of their possessions after being evicted. Some could not afford to move larger, more expensive items (e.g., furniture, appliances) and could not take many of their possessions with them as they bounced from place to place. Others paid to store their things only to lose them later after missing payments. After Arleen was evicted, she took what she could to a storage unit, locking behind a bright orange aluminum door summer clothes, silk plants, bibles, three mattresses sunken and torn, a television and stereo, an armoire the people who lived in the apartment before her left behind after they were evicted, and window-mounted air conditioning units. Having cobbled together enough money for the down payment and security deposit, she paid \$80 a month to store her things while searching for subsequent housing. (The sum of a few of these installments surely exceeded the material value of her possessions.) Four months later, however, Arleen would miss two payments after her eldest son lost (or stole) her money. Her possessions would be thrown out. Like many evicted tenants, then, Arleen would have to find not only new housing but also new beds, new clothes, and new furniture.

Finally, recently evicted tenants also have a difficult time qualifying for affordable housing programs. The need for affordable housing has so outpaced municipalities' ability to provide it that desperate families must wait years before even applying for aid. In Milwaukee, families looking to secure a subsidized apartment can expect to wait two to three years before the waiting list opens and another two to three years to secure a two-bedroom unit. In 2010, Milwaukee's Section 8 waiting list comprised approximately 3,500 people who had applied to the program in 2006. If any were evicted while trying to make ends meet in the private market, that would count against them when the Housing Authority finally did review their case. Because the Housing Authority, with a waiting list in the thousands, counts evictions and unpaid rental debt as strikes against those who have applied for assistance, a negative mark can mean a rejected application. When Lorraine applied for subsidized housing, she was denied because of "eviction history."¹⁹

¹⁹ As Vale (2000) has observed, throughout American history the poorest of the poor traditionally have not benefited from federal housing assistance.

DISCUSSION

The findings of this study have offered one answer for why low-income families move so much: they are forced to. In generating a rigorous (if conservative) estimate of the magnitude of eviction in Milwaukee neighborhoods, this study has identified eviction as a key mechanism driving high levels of residential mobility in poor neighborhoods. With roughly one in 14 renter-occupied households evicted annually, eviction is frankly commonplace in Milwaukee's black inner-city neighborhoods. Determining why poor families move as often as they do is crucial to our understanding of the root causes of social disadvantage and to the development of effective policy interventions. More research dedicated to identifying the underlying mechanisms of residential mobility is sorely needed, as is more work that analyzes if the consequences of a nonvoluntary move are more severe than those accompanying a voluntary one.

This study additionally has found women from black neighborhoods to be evicted through the court system at alarmingly high rates. If in poor black communities many men are marked by a criminal record (Western 2006; Pager 2007), many women from these communities are stained by eviction. The blemish of eviction greatly diminishes one's chances of securing affordable housing in a decent neighborhood, stymies one's chances of securing housing assistance, and often leads to homelessness and increased residential mobility. All these factors impel the reproduction of urban poverty. And in inner-city black communities, women are the ones who disproportionately bear the blemish of eviction and its consequences.²⁰ In poor black neighborhoods, what incarceration is to men, eviction is to women: a typical but severely consequential occurrence contributing to the reproduction of urban poverty. Both the mark of a criminal record and the stain of eviction can attenuate one's chances of securing decent, affordable housing.²¹ "I'll rent to you as long as you don't

²⁰ This is especially distressing given the fact that black women experience less access to rental housing and often must devote more time, effort, and money to securing subsequent housing, relative to whites and black men (Massey and Lundy 2001).

²¹ With the proliferation of cheap tenant screening services, there is good reason to expect the mark of eviction (and of a criminal record) to become even more consequential in the coming years. The last 40 years have witnessed a widespread professionalization of property management. Between 1970 and 2000, the number of people primarily employed as building managers or superintendents more than quadrupled (Thacher 2008, p. 19). As the amateur landlord steadily has been replaced by the professional, tenant selection processes that previously relied on local networks have been supplanted by those based on record keeping, risk assessment, and background checks (Sternlieb 1969). This process is informed by tenant screening reports—provided by an estimated 650 companies—that list past evictions, landlord-tenant disputes, and court filings. Although these reports often are riddled with errors, landlords increasingly have come to rely on them (Kleysteuber 2006).

have a *conviction* or an *eviction*,” landlords repeated to prospective tenants. Moreover, the eviction of thousands of women from black neighborhoods not only contributes to their homelessness and poverty but also disrupts community stability, a disruption itself linked to higher crime rates and neighborhood disorganization (Sampson and Raudenbush 1999). High crime rates and social disorganization, in turn, are linked to increased levels of police surveillance and punishment. Similarly, the high incarceration rate of low-income black men not only attenuates their chances of achieving social inclusion and economic security (Western 2006, pp. 131–67) but also exacerbates the economic insecurity of black women by increasing their likelihood of being burdened by the blemish of eviction and by boosting the rate of female-headed households. These twinned processes, eviction and incarceration, work together—black men are *locked up* while black women are *locked out*—to propagate economic disadvantage and social suffering in America’s urban centers.

Court record data demonstrated that women from black neighborhoods were overrepresented in the eviction records in proportion to their representation in the general population. Supplemental survey data found that black women disproportionately experienced the mark and the material hardship of eviction. But exactly how much of the discrepancy was attributed to discrimination tied to race and gender and how much to the poverty of black women? I cannot say. To address this question, new data are necessary. Survey data that would enable researchers to determine if women or immigrants or African-Americans are evicted at higher rates after accounting for socioeconomic status, eviction-warranting behavior, and other important considerations would produce much needed evidence regarding the degree to which discrimination affects the eviction decision. Such evidence could help promote and strengthen programs aimed at ensuring equal treatment under the law. After all, efforts to monitor and reduce housing discrimination have been almost wholly concentrated on *getting in*; we have overlooked discrimination involved in the process of *getting (put) out*.

Housing and Poverty

The study of housing traditionally has occupied a prominent place in the sociology of poverty and urban life. Following classic works of the 19th century documenting overcrowded and filthy housing conditions that arose in the wake of the Industrial Revolution—Engels’s *The Conditions of the Working Class in England in 1844* (1845), Riis’s *How the Other Half Lives* (1890)—an interest in housing grew after World War II, partially in response to the development and expansion of housing programs (Foley 1980). Major thinkers of midcentury, Wirth (1947) and Merton

(1951) among them, as well as scholars contributing to the Chicago school of human ecology (e.g., Hawley 1950; Park 1952), dedicated attention to housing. And in the 1970s and 1980s, sociologists investigated the dynamics of tenement settlements, rent strikes, and property turnover (e.g., Lipsky 1970; Logan and Molotch 1987). Despite this rich tradition, many sociologists today overlook the importance of everyday housing dynamics to the study of poverty.²² Most urban ethnographers, for example, have neglected housing dynamics (though see Pattillo [2007]; Hyra [2008]), choosing instead to study topics such as youth violence (e.g., Anderson 1999) or the informal economy (e.g., Bourgois 1995). No one can deny the importance of these topics, but when we consider that not everyone living in a poor neighborhood is associated with gang members, dope suppliers, or parole officers—or social workers, pastors, or employers, for that matter—but that nearly all of them have a landlord, it becomes clear that generating fine-grained ethnographic reports of housing dynamics in disadvantaged neighborhoods is fundamental to developing a robust account of everyday striving and suffering in the central city. Housing dynamics are just as central to our understanding of poverty as are dynamics associated with families, crime, education, jobs, or welfare. The sociology of inequality and urban life would grow more complex and comprehensive if researchers devoted more attention to analyzing how housing is implicated in the reproduction of urban poverty. This study has taken but one step in this direction.

What has not been overlooked in recent years, of course, has been housing *policy*. National attention directed toward public housing projects of the 1940s and 1950s “established much of the tone” for the sociology of housing at midcentury (Foley 1980, p. 463), and a strong interest in housing programs has continued to this day (e.g., DeLuca and Dayton 2009; Schwartz 2010). So established has housing policy research become that it is today virtually synonymous with the sociology of housing. Research on housing policy is extremely important, but in narrowing its focus to government-sponsored initiatives, this work generally neglects ordinary housing dynamics taking place in the private sector. Poverty scholars have much to gain from studying these latter dynamics, especially given the fact that the majority of poor families do not benefit from federal housing programs (Katz and Turner 2007; Pelletiere et al. 2008); that the federal government halted the expansion of public housing around 1975, shifting the responsibility of building and managing low-income housing primarily to nongovernmental corporations and individuals (Goetz 1993; Briggs 2005); and that, nationwide, municipalities increasingly are bulldozing public housing units and are refusing to build new ones, forcing

²² There are important exceptions (e.g., Briggs 2005; Newman 2005).

even more poor families into the private sector (Oakley, Ruel, and Reid 2009).

Policy Implications

Nationwide, it is likely that millions of evictions occur each year (Hartman and Robinson 2003). Several steps could be taken to reduce this number. First, an expansion of aid to families experiencing a drastic but temporary loss of income could help thousands stay in their homes. Stopgap measures of this sort could prevent the eviction of those who lost their jobs, had their public assistance provisionally cut off, or experienced a medical emergency or family death. When Milwaukee tenants facing eviction were given access to emergency housing aid from the American Recovery and Reinvestment Act of 2009, the city's eviction rate fell by 15%.²³ Second, increased access to free legal counsel would decrease evictions. One study estimated that more than 70% of U.S. households facing eviction receive no legal representation (Seedco 2009). Yet researchers have shown that tenants with counsel are more likely to appear in court and are significantly less likely to be evicted than their unrepresented counterparts, irrespective of the merits of their case (Monsma and Lempert 1992; Seron et al. 2001).²⁴

The most powerful and effective eviction-prevention policies, however, are among the most powerful and effective antipoverty policies: tried-and-true affordable housing initiatives. The fundamental issue is this: the high cost of housing is consigning the urban poor to financial ruin. We have ushered in a sad and unreasonable moment in the history of the United States if thousands of poor families are dedicating upward of 80% and 90% of their income to rent. To millions of Americans living in poverty, the commonplace ideal of dedicating a third of one's income to housing expenses is far beyond reach.²⁵ If we do not wish to doom poor families to a hand-to-mouth existence, if we hope to prevent thousands from living one work-related accident or one welfare sanction away from

²³ Author's calculations based on Milwaukee County eviction records, 2008–9.

²⁴ Additionally, to ensure that groups disproportionately affected by eviction, e.g., single mothers, are not systematically denied assistance, housing authorities should minimize the importance of applicants' prior evictions.

²⁵ Community Advocates, Milwaukee's largest community-based organization providing housing assistance, now deems a residence "affordable" if it requires only 70% of a person's income. The organization has concluded that locating a residence that would require only 33% no longer is possible. Indeed, a study by the National Low Income Housing Coalition (Wardrip et al. 2008) found no single American municipality or county in which someone working full-time for minimum wage could afford a one-bedroom home by dedicating only a third of her or his income to rent.

eviction, then something must give. Exactly what and how and with what consequences are questions social scientists must pursue with conviction. Perhaps a solution within our current social and economic framework is possible. But perhaps it is time to reconceive altogether the most fundamental elements of housing in America. Whatever the case may be, there is no question that housing issues need to be elevated to a more prominent position on our scholarly and political agendas.

APPENDIX

Imputing Sex from Names Listed in the Eviction Records

To impute sex from names, coders made two passes through the data. On their first pass, coders assigned a male or female designation to names they immediately associated with a sex. By and large, men's and women's names bear sharp differences in their phonemic designs, sounds, and endings. Female names are much more likely to possess more syllables and sounds and are more likely to vary the position of the stressed syllable (Slater and Feinman 1985). Names that end in a long *e* (e.g., Tiffany, Melody), *l* (e.g., Shauntell, Michelle), or schwa sound (e.g., Jessica, Shawanna) are common among women but rare among men. The most common men's names, by contrast, end in a consonant sound (Lieberson and Bell 1992). Common masculine and feminine suffixes used in Spanish names (e.g., *o* suffix for men, *a* suffix for women) facilitated assigning a sex to individuals with Spanish names. Additionally, researchers have identified the tendency of immigrant families to select for their children widely recognized English names once popular among native whites (Lieberson 2000; Sue and Telles 2007). Distinctive and widespread gender demarcations such as these—and others as well, including suffixes (e.g., junior, senior) and gender-specific middle names paired with gender-neutral first names (e.g., Bobby Ann)—allowed coders to estimate sex with a considerable degree of accuracy. Because most names are familiar and common (the 1,000 most popular names account for roughly 90% of the population) and because there is strikingly little overlap between male and female names in North America (in the majority of cases, members of all major racial and ethnic groups employ gender-specific names [Lieberson 2000; Sue and Telles 2007]), the risk of mislabeling was minimal.

On their second pass, coders revisited all unknown names ($N = 12,241$) and attempted to assign a sex to each by performing two steps. First, because for many people eviction was neither their first nor their last contact with the criminal justice system, coders conducted an additional court records search to determine if the name in question had other convictions and, therefore, criminal records that did include sex identifiers.

If an additional court records search proved unsuccessful, coders performed a simple Internet search by plugging unknown names into popular naming websites. In some cases, the sex of a landlord whose name appeared multiple times in the eviction records was discovered through additional Internet and newspaper searches or through landlord connections established during my fieldwork. If no further information (or contradictory information) about the name was gathered after these searches, the name remained coded as unknown. Forty percent of unknown names were assigned a sex through court records searches and 32% after Internet searches, and 28% remained unknown after additional searches.

Milwaukee Eviction Court Study

Each day of the Milwaukee Eviction Court Study, interviewers received a court docket listing the day's eviction cases. As small claims court got under way, two administrators would begin calling out cases, asking parties to approach the front of the room to be counted. As they did, interviewers identified all potential respondents: tenants who appeared in eviction court that day. After tenants returned to their seats, they were approached by an interviewer, who told them about the study and handed them an information card. Tenants were interviewed after their case was heard in front of a commissioner. On most days, two interviewers and a Spanish translator were present at the courthouse, taking attendance, keeping track of potential participants, and conducting interviews. The average interview lasted five minutes. Everyone who completed the survey was offered \$5 as a token of appreciation. There are no partial completes and very little missing data. Of the 127 households appearing in eviction court that were not interviewed, only 21 refused to participate in the study. Most of the remaining 106 were taken to other rooms and did not return to the main courtroom, the location of the study. Ineligible cases included households for which tenants did not appear in eviction court ($N = 940$) as well as a small number of nonresidential evictions ($N = 10$).

In legal studies, there is an established tradition of in-court surveys, including those of housing courts (e.g., Fusco, Collins, and Birnbaum 1979; Bezdek 1992; Gunn 1995). One limitation of these studies, however, is that tenants who do not appear in court are not interviewed. This raises the question, Are tenants who appear in court different from those who default? Somewhat surprisingly, there is little evidence of this. One study (Larson 2006) has shown that one's distance from court and the presence of legal counsel for property owners do not explain why tenants default. Additionally, the study produced mixed evidence that neighborhood-level poverty affects the likelihood of defaulting and offered no support for the

hypothesis that “psychological costs” involved in managing stigma discourage tenants from appearing in court (p. 126). With respect to legal consciousness and competence, another study of housing court (Bezdek 1992, p. 581) “generated no clear basis for speculating that the no-shows had a greater or poorer awareness of the law’s provisions than those tenants who did appear.” Although tenants accused of nonpayment appear more likely to default (Larson 2006), 92% of tenants interviewed for the Milwaukee Eviction Court Study had missed rent payments (see also Gunn 1995, p. 396). And although tenants with counsel are more likely to appear in court (Seron et al. 2001), the vast majority of tenants who show up at court are unrepresented (Seedco 2009). These considerations notwithstanding, that tenants who did not appear in court eluded the scope of this survey remains an important limitation to bear in mind.

Since survey data collected in 2011 were meant to inform patterns identified in eviction record from 2003 to 2007, one might reasonably wonder if renters represented in each data source were qualitatively different from one another. Could the subprime mortgage collapse and foreclosure crisis, which began in 2007, have altered the characteristics of the city’s evicted population? Although foreclosures would not have been counted among court-ordered evictions, we still might expect a spike in evictions to have occurred during the housing crisis and ensuing recession. If the spike was large enough, one might have good reason to believe that some types of people evicted in 2011 (e.g., the recently unemployed) might not have been evicted in, say, 2005. However, as figure A1 shows, the number of evicted tenants in Milwaukee actually fell during the first two years of the recession (2008 and 2009), even as the number of filed eviction orders increased slightly. Several factors may have contributed to this drop. Landlords with properties in foreclosure may have chosen not to invest the time and money to evict tenants only to have the bank take the building in the end. Others feeling the pinch may have been more willing to work with tenants who had fallen behind. Whatever the case may be, the crucial point for our purposes is that the recession years of 2008 and 2009 saw no spike in evictions. There is good reason to believe, then, that the city’s evicted population was not dramatically affected by the recession. Of course, problems attributed to the economic downturn—unemployment, homelessness, financial vulnerability—are nothing new to the urban poor, who long have survived on the knife edge of economic subsistence. Theirs has been lifelong recession; for some, a recession of generations.

A final concern has to do with the yearly cycle of evictions and the survey’s duration. Far from being consistent across months, evictions in Milwaukee follow a fluctuating seasonal pattern. As the year begins, evictions are moderate. The number dips down during February but then

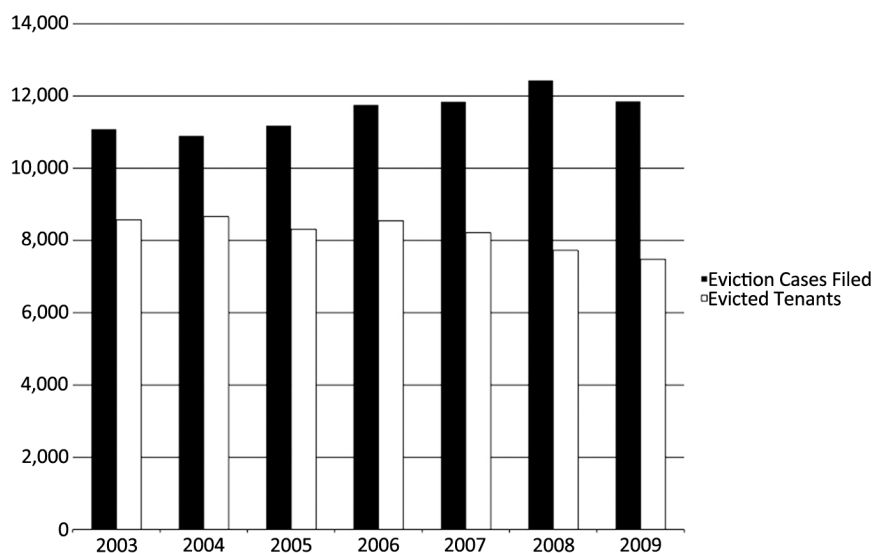


FIG. A1.—Filed eviction cases and evicted tenants. Data are from Milwaukee County eviction records, 2003–9.

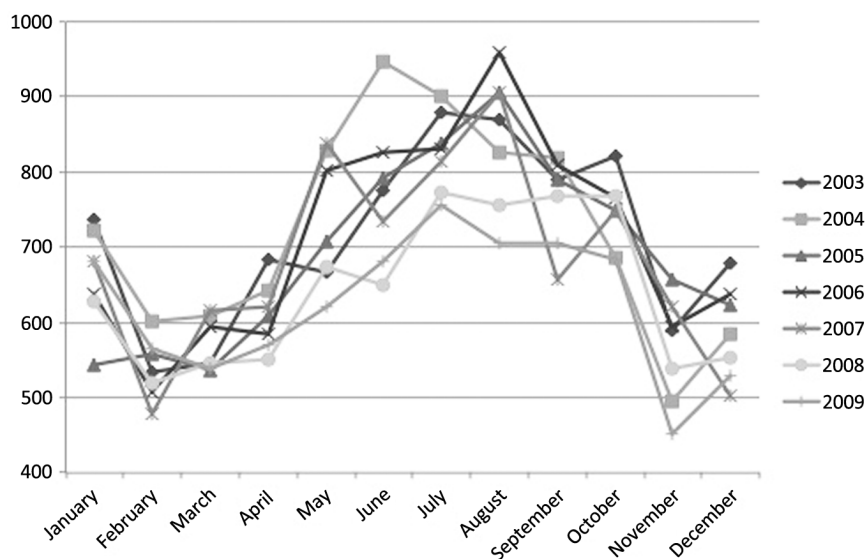


FIG. A2.—Evicted tenants by month. Data are from Milwaukee County eviction records, 2003–9.

begins to climb upward. After peaking in August or September, the monthly count starts to decline. As the city bends toward a new year, evictions begin to rise once more (see fig. A2). In light of these considerations, one might ask, Is a sample of tenants appearing in eviction court in January and February an adequate representation of the annual evicted population? Although the number of evictions vacillates in a predictable manner throughout the year, the general composition of the evicted population remains fairly stable. Supplementary analyses (not shown) demonstrated that annual patterns within the eviction records were consistently manifest on a monthly basis, the first two months of the year being perfectly ordinary with respect to the location of evictions and the sex of evicted tenants. By itself, the survey would have underestimated the magnitude of eviction: the combined monthly average of evictions in January and February is below the monthly average for the entire year. However, as a supplement to a data set of eviction records that spans five years, the survey stands as a valuable source of information on the demography of the evicted population, the composition of evicted households, and the primary reasons for eviction.

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